

Item 3.

I believe that Michigan Rubber should be a CIU. We welcome any assistance in evaluating whether or not Michigan Rubber is a CIU.

This is the description found under automotiveoem.com for Michigan Rubber Products Inc.:

*Michigan Rubber Products, Inc.
Zhongding Sealing Parts (USA) Inc.
1200 Eighth Avenue
Cadillac, Michigan 49601 - USA
Telephone: 231-775-1316
Fax: 231-775-3160
Tier I & II
Certificates: ISO/TS 16949, ISO 14001
Number of locations: 2
Employees: 400
Facility size: 156,000 ft.²
Year founded or site established: 1972*

www.michigan-rubber.com

Services include compression/transfer molding, rubber and plastic injection molding, extrusion and automated cutting and assembly. Products area includes air induction, NVH, Static gaskets, tubing (air, water and Fuel).

Per your suggestion, we will include your recommendations on Industrial user (IU) permits in future.

Please contact me or Jeff Dietlin (231-779-7346) if you need any other information or have any concerns.

Best Regards,



Hamid Rahbarnoohi
200 N. Lake St.
Cadillac, MI 49601
231-775-2841

No CC to Samir Wale?



RICK SNYDER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF ENVIRONMENTAL QUALITY
GAYLORD FIELD OFFICE



DAN WYANT
DIRECTOR

June 26, 2015

Mr. Hamid Rahbarnoohi
Water Resources Supervisor
Cadillac WWTP
200 N. Lake Street
Cadillac, Michigan, 49601

Dear Mr. Rahbarnoohi:

SUBJECT: Pretreatment Compliance Inspection
NPDES Permit Number MI0020257
Designated Name: Cadillac WWTP

On May 14, 2015, I met with you and Jill Edelbrock from the Department of Environmental Quality (DEQ), Water Resources Division (WRD) to conduct a Pretreatment Compliance Inspection (PCI) at the Cadillac WWTP, located at 1121 Plett Road, Cadillac, Michigan. The purpose of the inspection was to evaluate the facility's compliance with Part 31, Water Resources Protection, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (NREPA) and the Michigan pretreatment requirements in your National Pollutant Discharge Elimination System (NPDES) Permit Number MI0020257.

The PCI Inspection included a review of the treatment plant profile, industrial user permits, monitoring data, and records kept as required by your NPDES Permit.

The following items were reviewed and/or discussed during the inspection:

1. Your annual report for 2014 included facilities in significant noncompliance (SNC). According to Part 23, Rule 323.2306 (d), publicly owned treatment works (POTWs) that have pretreatment programs must comply with public participation requirements which include public notification in the largest newspaper circulated in the municipality in which your POTW is located. This rule requires you to annually publish all categorical industrial users (CIUs) in SNC. According to your annual report, the following CIUs were in SNC, but not published in the local newspaper:
 - AAR Manufacturing (6th Avenue)
 - Cadillac Castings, Inc.
 - Rec Boat Holding, Inc. Trailer Plant
 - Rec Boat Holding, Inc. Sports
 - Rec Boat Holding, Inc. Cruiser
 - Hutchinson Anti-vibration Systems (formerly known as Paulstra)
2. The inspection revealed impacts to your facility related to fats, oils and grease discharged from Michigan Rubber. This discharge is causing interference with nitrification at the plant resulting in NPDES Permit limit exceedances for ammonia. According to your Electronic Discharge Monitoring Reports (e-DMR), ammonia was exceeded in February 2015, March 2015, and April 2015.

3. According to your 2014 Annual Report, Michigan Rubber is not considered a Categorical Industrial User (CIU). During the inspection, MDEQ questioned the accuracy of Michigan Rubber's listing. After reviewing the Industrial User Permit for Michigan Rubber, it was unclear if Michigan Rubber meets any subcategory in the Categorical Designation listed in 40 CFR, Part 428, Rubber Manufacturing Point Source.

According to Part 23, Rule 323.2306 (g), the POTW shall develop and implement an enforcement response plan (ERP) containing detailed procedures indicating how a POTW will investigate and respond to instances of nondomestic user noncompliance. The purpose of this requirement is to insure protection of the plant for non-domestic discharges of industrial nature.

During the inspection, we discuss enforcement efforts made and an email sent to Michigan Rubber on April 17, 2015. Michigan Rubber responded that an audit would be completed and the source was unknown.

This letter serves as a reminder to implement your approved Enforcement Response Plan (ERP). MDEQ considers this violation to be considered major due to the exceedance of your NPDES permit limit, recurring nature, and observed harm to the plant. Enclosed you will find your approved ERP. Please respond to this letter indicating what further action has taken place to resolve this issue since the date of the inspection.

Please further evaluate whether or not Michigan Rubber is a CIU. MDEQ can offer assistance with this process.

As discussed during the inspection, we recommend the following updates to your Industrial User (IU) Permits:

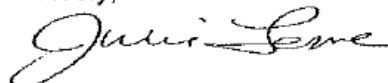
- Include a facility description in each permit. Identify what they do to produce process wastewater.
- Include whether or each facility listed is a CIU.
- Include the process of flow.
- Update your pH data column, you cannot have a 30 day average as a limit for pH.
- Include the monitoring location in each permit.
- Inspection forms should include the following additional information: name of inspector, whether or not the inspection was announced, process description, wastewater flow information, wastewater treatment information.

Please respond in writing to items 1-3 above **no later than July 30, 2015**.

We appreciate your efforts to maintain compliance with the pretreatment requirements of your NPDES permit.

Should you require further information, please contact me directly at 989-705-3446 or lowej2@michigan.gov.

Sincerely,



Julie Lowe
Water Resources Division

Enclosure
cc/enc: Jill Edelbrock, DEQ

Section I: INTERVIEW

PRETREATMENT COMPLIANCE INSPECTION

Control Authority: Cadillac WWTP

NPDES Permit # MI 0020257

Inspection Date(s): 5/14/15

Period Covered by Inspection: Permit cycle Nov 2013 - Present

Inspector(s): Jill Edelbrock/Julie Lowe

Name	Title	Phone/e-mail
Jill Edelbrock	EQA	989-894-6266
Julie Lowe	EQA	989-705-3446

Facility Representative(s):

Name	Title	Phone/e-mail
Hamid Rahbarnoo	Water Resource ^{Super} User	231-775-2841
	Hamid hrabbar	nooni@
		Cadillac - MI.net

IPP Implementation: ERP

1. Are you having problems with any industrial users?

☒ Yes ☐ No

If yes, complete the following:

Facility Name(s)	Nature of Problem and CA Response
ARVCO	They make cardboard boxes - ink causing color changes. Low flow
CCI Cadillac Casting Inc.	Lately things are good. They are recycling water. Metals T mass bal. is ok. Less water = not much dilution. Moly, copper etc. hits in the past
Michigan Rubber Fats/oils - causing problems w/ nitrification No limit in permit NOT taking enforcement yet Just verifying sampling.	Nitrification / Ammonia limits exceeded - they don't have Nitrotufecation. Creates bump + makes primary tank malfunction. Freezing in winter. Harpid is ERP: WWTP is sampling / following up. They knew about it
	↳ nitrification - affected by toxicity of Ammonia
	* this is why they are having Ammonia issues
AVON automotive	EPA contacted about toluene dumping down drain. Talk to Brian Sheen at plant. older - prior to Aug 2015

follow-up w/ Brian Matheson - Cadillac District office
Brian Jankowski or Ryan Blazic chief follow-up

2. a) Did the POTW experience any of the following since the last inspection? [R 323.2303] Please check all that apply and the cause.

Did the POTW experience any of the following?	Yes	No	Industrial Cause	Non-Industrial Cause	Cause Unknown
Interference	☒	☐	☒	☐	☒
Pass through	☒	☐	☒	☐	☒
Fire or explosion	☐	☒	☐	☐	☐
Corrosive structural damage	☐	☒	☐	☐	☐
Flow obstruction	☐	☒	☐	☐	☐
Excessive flow rates	☐	☒	☐	☐	☐
Excessive pollutant contributions	☒	☐	☐	☐	☐
Heat problems	☐	☒	☐	☐	☐
Interference due to oil & grease	☒	☐	☐	☐	☐
Toxic fumes	☐	☒	☐	☐	☐
Illicit dumping of hauled wastes	☒	☒	☐	☐	☐
Worker health & safety issues	☐	☒	☐	☐	☐
NPDES Violations (specify)	☒	☐	☐	☐	☐

Ammonia recently

Michigan Rubber & / nitrification bacteria - they can't survive the winter - Each spring / early spring ammonia on the rise

- b) For each instance of industrial cause checked above provide information in table below.

IU Name	Action Taken
Michigan Rubber	Sampled Sent email waiting results + follow-up FAT/oil Limit - Add to permit?

Fat / oil / Grease = what does the SUO say → not in SUO in Resolution >

IPP Implementation: Procedures

Regulation of IUs

3. a. Any new SIUs since the last IPP Annual Report was submitted? [R323.2306 (c) (i)]

☐ Yes ☒ No

If yes, please list

- b. How do you find out about new industrial users and ensure that they are properly regulated?

They have to go to City Hall for water usage. City hall contacts WWTP. WWTP - site visit to new facilities.

4. Are all of your SIU's currently covered by an enforceable permit or equivalent control document? [R 323.2306 (a) (iii)]

☒ Yes ☐ No

If no, list and explain:

5. How many permits were reissued more than 180 days after the expiration date of the previous permit? [40 CFR 123.45 (EPA 1990 QNCR Guidance)]

None

Explain:

Inspections and Sampling

6. In the past 12 months, were all your SIU's [R 323.2306(c)(v)]:

- a) Sampled for all regulated parameters at least once by the CA?

☒ Yes ☐ No

- b) Formally inspected at least once by the CA?

☒ Yes ☐ No

(Inspections and Sampling, continued)

- c) If (a) and/or (b) is no, please list facilities that were not inspected or adequately sampled and an explanation.

Facility	Explanation

Adequate Resources

7. Describe the training provided for IPP staff since the last inspection. [R 323.2306 (e)]

Joint IPP/ Biosolids - 2 yrs ago

8. Are you planning to propose any program modifications within the next year?
[R 323.2309]

☐ Yes ☒ No

If yes, describe:

Section II: FILE REVIEW

9. Are there any specific IU's that you would like us to review during our inspection?

☒ Yes ☐ No

If yes, please list, and state reason.

Michigan Rubber
ARVCO

10. IU's selected for review:

Industry Name	File No.
ARVCO	590-20
Michigan Rubber	not recorded

Section III: SUMMARY & EVALUATION

1. Violations, deficiencies and required corrective actions:

ND

2. SNC Evaluation: Facilities that meet any Level I criteria or two or more Level II criteria are considered to be in SNC [USEPA QNCR Guidance]

a. Level I Criteria:

i. Failure to enforce against Pass-through and Interference ☒

b. Level II Criteria:

i. Failure to issue/reissue >10% of SIU permits within 180 days. ☒

ii. Failure to inspect or sample at least 80% of SIUs in the past year. ☒

iii. Failure to enforce pretreatment standards and reporting requirements ☒

iv. Any other violation of concern to the Approval Authority. ☒

c. Facility does not meet SNC Criteria ☒

3. NMS Data:

Areas Evaluated	Comment (S, M, U, NE)	Comment Detail
Enforcement Response	S	
IU Reporting	S	
IU Permits	S	
Procedures Implementation	M, S	Follow-up - EKR
Inspections/Sampling	S	
Adequate resources	S	
Legal Authority	S	
Local Limits	S	
Enforcement Response Plan	M	Follow-up
Procedures	S	

S=Satisfactory, M=Marginal, U=Unsatisfactory, NE= Not Evaluated

Corrected to

File No. _____

[illegible]

7. Introduction

REPORTING AND SCHEDULE VIOLATIONS

[illegible]

Wade, Jamie (DEQ)

From: Jankowski, Brian (DEQ)
Sent: Monday, March 9, 2015 10:51 AM
To: Heuer, Janice (DEQ)
Cc: Riley, Jacob (DEQ); Maturen, Brian (DEQ); Wade, Jamie (DEQ)
Subject: FW: Current Compliance Status-QNCR
Attachments: Current Violations_QNCR_All Districts.xlsx

See below and attached

Sincerely

Brian Jankowski, P.E.
District Supervisor
Water Resources Division, Cadillac District (Cadillac Unit)
Dept. of Environmental Quality

231-429-0982 (phone)
jankowskib@michigan.gov

From: Ostlund, Peter (DEQ)
Sent: Monday, March 09, 2015 10:43 AM
To: Bartley, Cheryl (DEQ); Bauer, Charles (DEQ); Casey, Steve (DEQ); Haas, Joseph (DEQ); Jankowski, Brian (DEQ); Rudolph, Brian (DEQ); Russell, Jon (DEQ); Sanders, Jerrod (DEQ); Verona, Laura (DEQ); Worm, Michael (DEQ); Yoon, Hae-Jin (DEQ)
Cc: Masterson, Mike (DEQ); Wilson, Tiffany (DEQ)
Subject: FW: Current Compliance Status-QNCR

FYI, please have review and take appropriate actions. There are a number of non-submitted DMRs that need to be addressed.

Perhaps we can review the limit exceedances at an upcoming EERT or DS meeting.

If you have any questions about the data, please contact Tiffany Wilson. Also let her know when missing DMRs are submitted so she can act on them.

Thanks, Pete

Peter Ostlund
Field Operations Chief – Lakes Erie & Huron
Water Resources Division
517-898-5128
ostlundp@michigan.gov

From: Wilson, Tiffany (DEQ)
Sent: Monday, March 09, 2015 10:20 AM
To: Ostlund, Peter (DEQ)
Cc: Alexander, Christine (DEQ)
Subject: Current Compliance Status-QNCR

Hi Pete. I have attached a spreadsheet that shows all of the facilities (Major) that are not in compliance. Please forward to the appropriate district staff for review.

Thank you.

Tiffany Wilson
Permits Section
Water Resources Division
Department of Environmental Quality
(517) 284-5592 phone
wilsont15@michigan.gov

Facility Name	NPDES #	Violation Date	Limit Set	Parameter Name	Parameter #	Monitoring Location	Violation	District
Ludington WWTP	MI0021334	7/31/2014	001-A	Ammonia Nitrogen	00610	B	Exceeded Limit	Cadillac
		8/31/2014	001-A	Ammonia Nitrogen	00610	B	Exceeded Limit	Cadillac
		9/31/2014	001-A	Ammonia Nitrogen	00610	B	Exceeded Limit	Cadillac
Cheboygan WWTP	MI0020303	11/30/2013	001-A	Entire Month/All Parameters				Cadillac
		12/31/2014	001-A	Entire Month/All Parameters				Cadillac

Cadillac WWTP NOT on list

Wade, Jamie (DEQ)

From: Wade, Jamie (DEQ)
Sent: Wednesday, December 17, 2014 2:30 PM
To: Wilson, Tiffany (DEQ)
Subject: FW: E2 Reporting: Processing Status for EDMR Submission

Tiffany,
I spoke with the operator and superintendent for the Cadillac WWTP. He did have the data and resubmitted today.
Thanks
Jamie Wade

-----Original Message-----

From: Hamid Rahbarnoohi [mailto:hrahbarnoohi@Cadillac-MI.net]
Sent: Wednesday, December 17, 2014 1:28 PM
To: Wade, Jamie (DEQ)
Subject: FW: E2 Reporting: Processing Status for EDMR Submission

Jamie,

I just resubmitted the 12/2013 Monthly DMR. I opened it and all the information was there. They had changed our DMR columns before the new NPDES took effect. For that month we did not have to do Mercury or Cyanide. I had left the monthly on those variables blank and had written explanation for daily and monthly. I now know that I should not have left it blank and should have used *G (means that the parameter was not required per NPDES permit for that month). Thanks and sorry for any inconvenience.

Hamid Rahbarnoohi
Water Resources Supervisor, Cadillac WWTP Cadillac, MI 49601
231-775-2841

-----Original Message-----

From: e2admin@michigan.gov [mailto:e2admin@michigan.gov]
Sent: Wednesday, December 17, 2014 11:56 AM
To: Hamid Rahbarnoohi
Subject: E2 Reporting: Processing Status for EDMR Submission

Michigan E2 Reporting System Message

System Time: 12/17/2014 11:56:15 AM
Atomic Time:

Hamid Rahbarnoohi Supervisor
Cadillac WWTP
200 North Lake Street

Cadillac, MI 49601

cc: ,

Subject: Processing Status for E2 Submission

This e-mail provides the processing status for the following E2 Submission:

E2 Reporting System submission status:

File Name: [ServerSide]1521_M_M1_14675_29346_2013_12.final

Upload System Time: 12/17/2014 11:56:14 AM

Status: Accepted

Your submission has been processed and no errors were found in the reporting format.

If you have any questions concerning the E2 system, please reference the guidance documents or other information on the website, or contact the E2 administrator at E2.Admin@michigan.gov

Thank you for using the Department's wastewater electronic reporting system.